Government of Canada Gouvernement du Canada

Application Guidelines - Legacy Fund

Building Communities through Arts and Heritage

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Objectives and expected results for the Building Communities through Arts and Heritage program

The Building Communities through Arts and Heritage (BCAH) program helps you celebrate your community, its past and its present. The program increases opportunities for local artists, artisans, heritage performers or specialists, and First Nations, Inuit and Métis cultural carriers to be involved in their community. It also allows local groups to commemorate their local history and heritage.

Expected results for the BCAH program

- local residents have the opportunity to get involved in their community through the arts and heritage;
- local artists, local artisans, local heritage performers or specialists, local cultural carriers and local Indigenous Elders have the opportunity to get involved in the community;
- local community associations and businesses have the opportunity to support the local festivals and local commemorative projects; and
- local residents have access to local arts and local heritage.

Objectives and expected results for the Legacy Fund

The Legacy Fund component supports community-initiated capital projects that restore, renovate or transform an existing building or exterior space (such as a statue, community hall, monument, garden or work of art) intended for community use. The expected results of the Legacy Fund component are as follows:

- more existing buildings or exterior spaces in local communities that are restored, renovated or transformed, and therefore available for community use; and
- residents have the opportunity to get involved in the preservation of heritage in their community.

Application deadline

Deadline: You must submit your application no later than the date of the anniversary being celebrated.

Notes: You are encouraged to submit your application at least 12 months before the start date of the proposed project (or six months for projects with a total budget of less than $200,000) to allow time to address questions during the assessment process, and the time necessary to notify you of the decision on your application. See Service Standards.

If you wish to apply more than two years prior to the anniversary date, please provide a justification and discuss your request with a program representative. If you are unable to determine the exact date of the anniversary to be commemorated, please contact a program representative to discuss your request.

Who can apply

To be eligible for funding, your organization must have been in operation for at least two years, plan to continue operating after this project's completion, and be one of the following:

- a local non-profit incorporated organization; or
- a local band council, local tribal council, or other local Indigenous government (First Nations, Inuit or Métis) or equivalent organization; or
- a municipal administration or any of its agencies, boards or commissions that, for the purposes of the proposed commemoration project, must demonstrate an active partnership with at least one community-based group.

In addition, all applicants, including community-based groups partnering with a municipal administration, must:

- have a publicly stated objective that is linked to the local community; and

- encourage local community engagement through activities that promote, celebrate, and preserve local arts or local heritage.

For approved projects with multiple stakeholders, the applicant will become the beneficiary of the funds provided, and will be responsible for implementing the project, including financial management and accepting legal liability.

The following groups or individuals **are not eligible**:

- ad hoc groups and organizations without legal incorporation;
- for-profit businesses;
- federal, provincial or territorial governments and their agencies, councils or commissions that are not connected to the municipal government, with the exception of band councils and equivalents, as provided above;
- public and private educational institutions, including universities, colleges and school boards; public libraries; and hospitals;
- groups with an exclusively provincial, territorial, national or international mandate;
- groups whose complete final reports for festivals, events or projects previously funded by the Building Communities through Arts and Heritage program have not been received by the Department;
- unions; and
- individuals.

Eligibility

The program is responsible for determining the eligibility of each applicant, their project and any project-related expenses.

The Legacy Fund is highly competitive. Requests for funding typically exceed available resources. Even if your organization and project are eligible, submitting an application does not guarantee funding.

Eligible projects

To be eligible for funding from the Legacy Fund, your project must be a community-initiated project that is intended to commemorate a significant local historical event or pay tribute to a significant local historical personality marking a 100th anniversary or a subsequent anniversary, in increments of 25 years (e.g., 125th, 150th). In addition, your project must involve the restoration, renovation or transformation of an existing building and/or exterior space intended for community use, such as, but not limited to:

- a community museum or theatre;
- a longhouse;
- an outdoor amphitheater, outdoor stage or Indigenous cultural arbour;
- a park or public garden for which over half the costs deemed reasonable by the program are devoted to the artistic and heritage elements (i.e., the legacy) of the anniversary; and
- a religious building converted to secular use.

Eligible projects may also include the purchase, commission, restoration or installation of objects to transform an existing building or outdoor space intended for community use. The object must be permanent, and may be, among others:

- a work of art;
- a monument;
- a sculpture; or
- a public mural.

The following projects **are not eligible**:

- buildings whose architectural history is being celebrated, unless they have played an important role in improving community life;
- projects that forecast a deficit;
- projects receiving financial support from the Canada Cultural Spaces Fund, the Commemorate Canada or the Celebrate Canada programs;
- projects commemorating Canada Day (July 1), National Indigenous Peoples Day (June 21), Saint-Jean-Baptiste Day (June 24), Canadian Multiculturalism Day (June 27), National Acadian Day (August 15), or the National Day for Truth and Reconciliation (September 30);
- projects commemorating the national days, historical events or personalities of other countries;
- projects taking place outside Canada;
- projects commemorating the anniversary of a federal, provincial or territorial institution or one of its entities still in existence;
- projects that are primarily intended for recreation or sport, unless celebrating a locally significant anniversary of a sport or recreational activity;
- projects of an essentially religious, political or commercial nature;
- projects involving buildings used for activities of a religious nature at the time of the application;
- projects taking place on funeral sites or in cemeteries, including cenotaphs;
- public works projects such as the construction or restoration of roads, docks and sewers;
- new building construction;
- travelling works and temporary projects; and
- renovations for historic buildings not directly linked to the commemoration (e.g., buildings less than 100 years old).

If your project does not meet the Legacy Fund's requirements, please visit the Funding Opportunities section of our website for more funding options.

Eligible expenses

Only project-related expenses are eligible; these may be in cash or in-kind. They must be directly linked to activities that promote and encourage community engagement, and reflect the expected results of the Legacy Fund, through projects that commemorate a significant local historical personality or event. Some examples include:

- expenses related to the restoration, renovation or transformation of a building or outdoor space, including demolition, excavation, materials, labour and specialized equipment;
- expenses related to the commissioning or installation of statues, murals, works of art and Indigenous gathering circles;
- the purchase of land, buildings and objects of significant importance;
- expenses related to the design, manufacture and installation of interpretive panels or commemorative plaques, including translation costs into French, English and local Indigenous languages;
- expenses associated with the unveiling or launch of the commemorative project up to 10 percent of total eligible project expenses, to a maximum of $10,000;
- professional fees for project planning, drawings and studies (e.g., architectural drawings, engineering studies, environmental assessments, heritage studies);
- professional fees for project financial audits for applications seeking more than $250,000;
- expenses related to the recruitment, training and support of local volunteers who are directly involved in the transformation of a building/outdoor space;

- expenses related to the administration of the commemorative project, up to 15 percent of total eligible project expenses;
- project contingency funds of up to 10 percent of total budgeted planning, acquisition, construction or material costs associated with the project;
- insurance fees for eligible activities; and
- HST, PST, GST: only the portion of the applicable tax that is not reimbursable by the federal government through its tax credit program is eligible.

The following expenses **are not eligible**:

- routine maintenance expenses;
- your organization's operating expenses (e.g., salaries, business travel expenses, office equipment and furniture, vehicles);
- the purchase, commissioning or restoration of religious objects or artifacts currently in use or to be used in the ongoing practice of religious ceremonies or rituals;
- the repatriation of artifacts;
- archaeological digs;
- expenses related to public works infrastructure, such as the construction or restoration of roads, docks, parking lots, bike paths or sewers;
- restoration of cemeteries or tombstones, including cenotaphs;
- expenses related to the purchase of recreational or sports equipment;
- the purchase, commissioning or restoration of objects intended for sale;
- the purchase, commissioning or restoration of movable objects not related to a permanent capital project;
- expenses related to the provision of food services (e.g., kitchen equipment); and

- expenses for which financial support is requested under the Local Festivals or Community Anniversaries component of the BCAH program.

The program cannot fund or deem eligible expenses incurred before the date your application is received. If you incur expenses for your project before receiving written confirmation of funding approval, you do so at your own risk.

Limits of government assistance

To ensure the success of your project, you must identify other funding sources. This may include contributions from your organization, the private sector or other levels of government.

The total financial assistance you receive from the Legacy Fund and the various levels of government (federal, provincial, territorial and municipal) cannot exceed 100% of your total project-related costs.

The program can fund up to 50% of your project's total eligible expenses. Grants may be awarded up to a maximum of $100,000 per project. Contributions for larger projects can be made up to a maximum of $500,000 per project.

In exceptional circumstances, the program may fund up to 75% of eligible expenses per project. Exceptional circumstances may relate to a project that directly addresses diversity and inclusion in an application from an equity-deserving organization. To learn more about funding criteria related to exceptional cases, please contact a program representative.

Through the Legacy Fund, the program will fund only one project per community commemorating a person or event. If the program receives more than one application on the same subject, the program will notify

you. You will then need to contact your municipal administration or equivalent body to determine which project will be submitted.

Applying for projects that are more than 12 months

You can apply for funding for a project lasting longer than 12 months. You must show that there is a need for a multi-year commitment and that you have the capacity to complete the project. You can do this by presenting a reasonable project timeline and budget forecasts, and demonstrating sound governance.

How to apply

Please read these Application Guidelines in their entirety and contact a Legacy Fund officer before applying.

You must meet all eligibility requirements and submit a complete application package for your project to be considered. A complete application package consists of the General Application Form and the documents listed on the last page of the application form, including the following items required to determine applicant and project eligibility:

- General Application Form (signatures required);
- Legacy Fund budget;
- proof of the anniversary date or existence of the event or local historical personality to be commemorated;
- a copy of your organization’s letters patent and/or documents of incorporation;
- a copy, or hyperlink to, your organization’s by-laws;

- a copy of your organization’s two most recent financial statements (audited if available); and
- documentation proving long-term ownership or lease of the facility (at least ten years), or operational agreements between the organization and the facility owner.

If you are a local, incorporated non-profit organization:

- a letter of support from the municipal administration or equivalent body that includes:
  - approval, for all other members of your community, of the capital project to commemorate this anniversary; and
  - the monetary value of the cash and/or in-kind support given to this project, presented separately.

If you are a municipality:

- a letter of support from your local community partners describing their role in the project and how the completed project supports their mandate. Partners must also demonstrate that their members:
  - have concrete decision-making authority from project conception to execution; and
  - are primarily or jointly responsible for the operations, programs or maintenance of the completed project (if applicable).

If your project includes ongoing activities after completion, please include any signed agreements between the parties.

Application process

- Complete, sign and date the Application Form;
- Attach all required supporting documents; and
- Apply **only once**.

Mail or in-person submissions

Your complete application package can be sent by mail or courier, or dropped off in person at your nearest Department of Canadian Heritage office.

Email submissions

The program encourages you to submit your application package electronically to the following email address: dcap-bcah@pch.gc.ca.

Please contact the program if you wish to fax your application package.

How applications are evaluated

The program funds projects with clear objectives and measurable results. Your application will be assessed against the evaluation criteria below by a review committee, which will compare it with other applications and prioritize it according to the funds available.

Any failure to meet the conditions of a previously funded project will be considered when assessing your new application, and may result in rejection.

Evaluation criteria

The following elements will be considered:

How does your project involve the local community?

- Volunteers directly involved in the project;
- Community partners who provide cash or in-kind support for the project;

- Visibility of the project, during and after its completion.
- The accessibility of the completed project to the community and visitors; and
- The inclusiveness of the project and how it takes into account the diversity of the local community.

How are arts and heritage highlighted in anniversary commemoration activities, and to what extent will your project raise the profile of local arts and heritage in the community?

- The importance of the event or person to the community (relevance of the anniversary);
- Elements of the project that relate directly to the person or event being celebrated;
- Involvement of local artists, artisans, heritage specialists and/or cultural carriers during the project;
- Future artistic and/or heritage activities planned on the project site.
- The inclusion of different local perspectives on the anniversary being commemorated, including local Indigenous perspectives, where appropriate; and
- The impact the project will have on community awareness of the person or event being celebrated.

To what extent does your organization have the capacity to successfully carry out the project as proposed?

- Your ability to carry out the project with a budget deemed reasonable and balanced (no surplus or deficit); and
- Your ability to maintain and/or operate the project after completion for the next ten years.

Application processing time

Please refer to the Service standards for Canadian Heritage funding programs or contact the program.

The program will acknowledge receipt of your application within two weeks of receiving it. If you do not receive an acknowledgement of receipt within this time, please contact the program.

Funding decisions

The program determines the level of funding based on your financial needs. Please note that all decisions regarding eligibility and funding are final.

How funding is provided

The program will determine whether funding will be disbursed as a grant or a contribution.

A grant is a payment made to a recipient for a project. The conditions you agreed to when you submitted the application apply. At the end of your project, you may be required to submit a report and/or participate in the evaluation of results.

A contribution is a conditional payment made for a specific purpose defined in a funding agreement. This agreement is signed by your organization and the program, and specifies the terms and conditions for receiving payments. At the end of your project, you will be required to submit a final report.

Funding conditions

You may be required to submit interim reports during your project. If you receive a contribution of $250,000 or more, you are required to submit an audited financial report. Additional conditions may apply and, if so, will be written into the funding agreement.

Anti-racism and anti-hate

Canadian Heritage is committed to address systemic racism, promote diversity, and create environments where every individual is valued, respected, and empowered. We strive to challenge discriminatory beliefs and practices, cultivate understanding and empathy, and champion policies and programs that advance equality for all.

Organizations receiving funding, including any representatives whether employees, consultants, or other persons directly affiliated with the organization, must take steps to ensure they respect the values underlying the *Canadian Charter of Rights and Freedoms*, the *Canadian Human Rights Act*, and Canada's Anti-Racism Strategy.

Workplace well-being

The Government of Canada is strongly committed to promoting healthy workplaces where harassment, abuse and discrimination are not tolerated. Organizations that receive funding from Canadian Heritage must take measures to create a workplace free from harassment, abuse and discrimination.

Official language requirements

The Program is committed to taking positive measures to enhance the vitality of official-language minority communities and promote the use of English and French in Canadian society. If you receive funding, you agree to comply with the official language requirements set out in your application and funding agreement.

Diversity and inclusion

It is expected that all activities undertaken as part of funded projects take into account the needs of all people in Canada, including but not limited to Indigenous peoples and people in Canada of various faiths, cultures, ethnicities, abilities, sexual orientations and gender identities and expressions.

Indigenous languages

The Department of Canadian Heritage is committed to supporting efforts to reclaim, revitalize, maintain and strengthen Indigenous languages, and to preserve and revitalize Indigenous cultures. As such, activities and expenses related to the support of Indigenous languages and culture may be eligible as part of a commemorative project. To learn more, please discuss your application with a program representative.

Acknowledgement of financial assistance

If you receive funding, you must publicly acknowledge – in English and in French – the financial support received from the Government of Canada in all communications materials and promotional activities. Additional requirements may be included in your funding agreement.

For additional information, please refer to our Guide on the public acknowledgement of financial support.

Impact Assessment Act

If you receive funding, your project may be subject to the provisions of the *Impact Assessment Act*. If your activities are to be carried out on federal lands, the program will contact you for additional information prior to the start of your project.

Preservation of Historic Places in Canada

If your project includes the restoration and/or renovation of a historic place officially recognized by a municipal, provincial or territorial government and/or is listed in the Directory of Federal Heritage Designations, the program expects the project to respect applicable federal, provincial, territorial, and/or municipal regulations and laws protecting heritage value.

Access to information requests

Subject to the *Access to Information Act* and the *Privacy Act*, the information you submit in your application may be disclosed in accordance with these acts.

Disclosure of information

By submitting your funding application, you authorize the program to disclose any information submitted with this application within the Government of Canada or to outside entities for the following purposes:

- to reach a decision;
- to evaluate the results of the project; and
- to support transparency, accountability and citizen engagement.

Audits of recipients and evaluation of the program

The program reserves the right to audit your accounts and records to ensure compliance with the terms and conditions of your funding agreement. The Department also conducts periodic program evaluations, during which you may be required to present documentation.

You must keep any records, documents, or other information that may be required to perform the audit or the evaluation for five years. Demonstrated failure to maintain such records may result in the repayment of amounts previously received.

Contact us

For further information, please contact the program.

Department of Canadian Heritage
Building Communities through Arts and Heritage
200 Sacré-Cœur Boulevard
Gatineau, Quebec
J8X 4C6

Email
dcap-bcah@pch.gc.ca

Telephone
819-997-0055
1-866-811-0055 (toll free)

TTY (teletypewriter)
1-888-997-3123 (for people who are deaf, hard of hearing or speech-impaired).

Agents are available to answer your questions Monday to Friday from 8:30 to 5:00 (ET (Eastern Time)).

Glossary

Artisan
An individual who makes crafts using materials such as glass, wood, stone, textiles and leather, etc. according to ancestral traditions.

Artist
An individual who practices an artistic discipline (i.e., music, dance or theatre) or one of the applied arts.

Audited financial report

An audited financial report includes a statement of operations for the given period with regard to the Project and is prepared by a certified accountant who is not part of your organization.

Audited financial statements

A complete set of financial statements including a statement of financial position; a statement of operations; and a statement of changes in financial position. Audited financial statements are completed by a certified accountant who is not part of your organization. The certified accountant performs auditing activities in accordance with generally accepted accounting principles.

Business plan

A written document that describes your organization’s current status and plans for two to five years. It identifies future opportunities and includes the financial, operational and marketing strategies to achieve your goals.

Cash flow

A presentation of all anticipated revenues and planned expenses that will occur over the length of your project. At the beginning of your project, your cash flow will have only forecasted revenues and expenses. Over time, your cash flow will be updated to reflect the actual revenues and expenses.

Community

People who live in and share the same geographical area, which is smaller than a province or a territory, characterized by a shared history, a common culture and heritage.

Community engagement

Community engagement can take many forms. Local residents may be engaged as supporters, volunteers, board members, artists, artisans, heritage performers, heritage specialists, cultural carriers, professionals, consultants, audience members, etc. Local community supporters can include organized groups, local businesses, or individuals. Local supporters may be engaged by providing cash or in-kind support for the project.

Cultural carriers

Cultural Carriers are individuals whose role within First Nations, Inuit and Métis communities supports the preservation, retention, maintenance, and knowledge production/transfer of specific Indigenous worldviews, cultural practices and traditions through art and creative practice. This may include Elders, knowledge keepers, traditional educators and language holders.

Ethnocultural communities

A group of people whose members identify with each other, through a common heritage. For the purpose of this definition, ethnocultural communities include Canadians of diverse culture such as, but not limited to African, Arab, Asian, Latin American or mixed heritage.

Feasibility study

Report conducted in advance of a project to determine the likelihood of the project's success. It is prepared by an independent consultant, architect and/or engineer or other specialist.

Federal lands

a. lands that belong to His Majesty in right of Canada, or that His Majesty in right of Canada has the power to dispose of, and all waters on and airspace above those lands, other than lands under the administration and control of the Commissioner of Yukon, the Northwest Territories or Nunavut;
b. the following lands and areas:
    i. the internal waters of Canada, in any area of the sea not within a province;
    ii. the territorial sea of Canada, in any area of the sea not within a province;
    iii. the exclusive economic zone of Canada; and
    iv. the continental shelf of Canada; and
c. reserves, surrendered lands and any other lands that are set apart for the use and benefit of a band and that are subject to the *Indian Act*, and all waters on and airspace above those reserves or lands.

The following resources may help you determine if the site of your activities is on federal land.

- Treasury Board Secretariat directory
- Parks Canada directory

Final financial report

A final financial report includes, as separate items, the budget as well as all of the revenues realized and expenditures incurred for the given period with regard to the Project being funded.

Final report

A final report is submitted at the end of your project based on the requirements in the funding agreement. Your final report needs to provide the results of the activities you have undertaken for the duration of your project and include a final report of actual revenues and expenses.

Financial statements

A complete set of financial statements, including a statement of financial position; a statement of operations; and a statement of changes in financial position. Financial statements may be audited or unaudited.

Heritage

Comprises activities related to tangible or intangible attributes related to history for the purpose of this program. Examples: artifacts, art objects, archives, stories, songs, legends, traditions, historical sites and events, but not restricted to them.

Heritage performer

A heritage performer typically refers to someone who celebrates or continues a tradition, ancestral practice, art form, or cultural practice that has historical significance. It can be applied to various contexts, such as music, dance, theatre, or historical events.

Indigenous communities

Indigenous communities include First Nations, Métis and Inuit communities.

In-kind contribution (in-kind support)

In-kind support is considered to be a real contribution to the total planned expenses, but is not reimbursable. Donated goods or services, assessed at market value, may be eligible if they are essential to the project's success.

Interim reports

Interim reports are submitted during your project based on the requirements in the funding agreement. Your interim report will provide the results of the activities you have undertaken for a specific period, a report on the status of work to be accomplished and include updated revenue and expense reports.

Local

Pertaining to a geographic area that is smaller than a province or territory, with a population characterized by a common culture, economic activity, heritage, etc.; and by extension:

- **local artist or artisan or cultural carrier**: an artist or artisan or cultural carrier born in, residing in, or having a significant connection to the geographic community identified by the applicant in their application form;
- **local historical event**: an occurrence in the past that contributed to shaping the geographic community identified by the applicant in their application form;
- **local group or organization**: a group or organization that, through either its mandate, objectives or activities, clearly engages the geographic community in which it operates;
- **local heritage**: historical events or personalities directly linked to the history of the geographic community identified by the applicant in their application form; and
- **local historical personality**: a person, now deceased, who originated from, lived in or is closely associated with the locality designated by the applicant.

Official-language minority communities

Official-language minority communities are the Francophone communities located outside of Quebec and the English-speaking communities located in Quebec.

Participation

The members of a community taking part in activities such as festivals, events or projects. This participation can take various forms including donations of time, money, goods, services, etc.

Volunteer

An individual working on behalf of others without receiving financial or material gain.

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